

**SUBSTITUTE FOR
SENATE BILL NO. 296**

A bill to amend 1978 PA 368, entitled
"Public health code,"
(MCL 333.1101 to 333.25211) by adding section 21526.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 21526. (1) Beginning June 1, 2027, except as otherwise**
2 **provided in subsection (3), a hospital shall not require a**
3 **registered professional nurse to work more than any of the**
4 **following:**

5 **(a) The registered professional nurse's regularly scheduled**
6 **hours according to the registered professional nurse's**
7 **predetermined work schedule.**

8 **(b) The hours for which the registered professional nurse is**
9 **considered to be on call or is called into work as a result of**



1 being on call.

2 (c) The hours for which the registered professional nurse has
3 voluntarily agreed to work that exceed the hours described in
4 subdivisions (a) and (b).

5 (2) If a registered professional nurse works 12 or more
6 consecutive hours for a hospital, the hospital shall provide the
7 registered professional nurse with 8 consecutive hours of off-duty
8 time immediately after the registered professional nurse completes
9 that shift.

10 (3) Subsection (1) does not apply under any of the following
11 circumstances:

12 (a) During a declared state of emergency or a mass casualty
13 incident.

14 (b) If a registered professional nurse is assisting with a
15 patient-care procedure that extends beyond the registered
16 professional nurse's regularly scheduled hours according to the
17 registered professional nurse's predetermined work schedule and the
18 registered professional nurse's immediate supervisor, other than a
19 charge nurse, determines that the absence of the registered
20 professional nurse during the patient-care procedure could have an
21 adverse effect on the patient.

22 (c) During the first 4 weeks immediately following the initial
23 declaration of a public health emergency under 42 USC 247d, if the
24 public health emergency is expected to significantly increase the
25 rate of patient hospitalization in this state.

26 (d) For 2 consecutive hours immediately following the end of a
27 registered professional nurse's regularly scheduled shift in a
28 hospital other than a hospital described in subdivision (e) if all
29 of the following are met:



1 (i) The registered professional nurse cannot be relieved due to
2 the unexpected absence of the oncoming registered professional
3 nurse who is intended to relieve the registered professional nurse.

4 (ii) The unexpected absence described in subparagraph (i) was
5 discovered at or within 1 hour before the commencement of the
6 oncoming scheduled shift.

7 (iii) The unexpected absence described in subparagraph (i) could
8 not have been prudently planned for by the hospital and it could
9 significantly impact patient safety.

10 (e) For 4 consecutive hours immediately following the end of a
11 registered professional nurse's regularly scheduled shift in a
12 hospital meeting the requirements described in section 110a(4)(b)
13 of the social welfare act, 1939 PA 280, MCL 400.110a, if all of the
14 following are met:

15 (i) The registered professional nurse cannot be relieved due to
16 the unexpected absence of the oncoming registered professional
17 nurse who is intended to relieve the registered professional nurse.

18 (ii) The unexpected absence described in subparagraph (i) was
19 discovered at or within 1 hour before the commencement of the
20 oncoming scheduled shift.

21 (iii) The unexpected absence described in subparagraph (i) could
22 not have been prudently planned for by the hospital and it could
23 significantly impact patient safety.

24 (4) A hospital shall not discharge or discipline, threaten to
25 discharge or discipline, or otherwise discriminate against a
26 registered professional nurse who is an employee of the hospital
27 regarding the registered professional nurse's compensation, terms,
28 conditions, assignment, or privileges of employment because the
29 registered professional nurse refuses to accept a work assignment

1 that causes the registered professional nurse's hours to exceed the
2 hours described in subsection (1).

3 (5) A hospital shall post a notice that informs registered
4 professional nurses who are employed by the hospital of this
5 section and how to file a complaint with the department for a
6 suspected violation of this section. The hospital shall post the
7 notice described in this subsection in 1 or more conspicuous places
8 where notices to employees of the hospital are customarily posted
9 and, if the hospital uses an intranet site to communicate with its
10 employees, on the hospital's intranet site.

11 (6) A hospital that violates this section is subject to the
12 administrative sanctions prescribed in section 20165.

13 (7) If a collective bargaining agreement is in effect for
14 employees of a hospital as of June 1, 2027, and if that collective
15 bargaining agreement prevents compliance with this section, then
16 this section does not apply until after the expiration of that
17 collective bargaining agreement.

18 (8) As used in this section:

19 (a) "Declared state of emergency" means an emergency that is
20 declared by a person authorized by the federal government, a local
21 government, or this state and that is related to a circumstance
22 that is unpredictable or unavoidable, affects the delivery of
23 medical care, and requires an immediate or exceptional level of
24 emergency or other medical services at the hospital. Declared state
25 of emergency does not include a public health emergency described
26 in subsection (3)(c) or an emergency that results from a labor
27 dispute in the health care industry or consistent understaffing in
28 the hospital.

29 (b) "Mass casualty incident" means an event with a number of



casualties that vastly exceeds the hospital's resources and capabilities and that occurs in a short and defined period of time.

(c) "Registered professional nurse" means that term as defined in section 17201.

(d) "Registered professional nurse's predetermined work schedule" means the work schedule for the registered professional nurse that is scheduled more than 24 hours before the beginning of the registered professional nurse's shift at the hospital.

Enacting section 1. This amendatory act does not take effect unless Senate Bill No. 297 of the 103rd Legislature is enacted into law.